

# Worship protections for non-Muslims under sharia

Analysis run: September 12, 2026

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| PROVIDER   | MODEL                    | LANGUAGE    | AUDIENCE |
|------------|--------------------------|-------------|----------|
| Openrouter | Deepseek/deepseek-v4-pro | En          | GENERAL  |
| INTONATION | LENGTH                   | TEMPERATURE |          |
| NEUTRAL    | Long                     | 0.7         |          |

## SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

## USER PROMPT

Write a concise, self-contained article entry for the title: "Worship protections for non-Muslims under sharia".

Overall topic for alignment: Rights of religious and sectarian minorities in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

**\*\*Respond in English\*\***

## SUMMARY

Sharia-based worship protections for non-Muslims are anchored in Quranic verses: “no compulsion in religion” (2:256) and the sanctity of monasteries, churches, and synagogues (22:40). The **dhimma** contract granted **Ahl al-Kitab** (Christians, Jews, etc.) security for life, property, and religious practice in return for the **jizya** tax. Historical implementation varied: the multi-religious **Constitution of Medina** guaranteed communal religious autonomy, while later empires formalized the system with protections (e.g., ecclesiastical courts, liturgical freedom) tempered by restrictions (e.g., limits on new churches, public displays) that were often negotiated rather than consistently enforced. The principle of **shart al-qidam** (antiquity) allowed repair of pre-existing structures. Major Sunni schools diverged: **Hanafi** rulings were more lenient, permitting new construction in peacefully surrendered towns and repairs; **Maliki**, **Shafi’i**, and **Hanbali** schools tended stricter, often prohibiting new places of worship empire-wide to uphold Islam’s public supremacy. The mainstream theological view regards worldly protection of other faiths as a divine command. Modern humanistic reinterpretation, leveraging AI analysis of Quranic objectives (**maqasid al-sharia**), reframes the default state as peaceful coexistence (**sulh**), elevates the Medina model over hierarchical dhimma, and treats historical restrictions as time-bound rulings that no longer serve the foundational principle of religious freedom, aligning with Article 18 of the Universal Declaration of Human Rights.

## FULL CONTENT

# Worship Protections for Non-Muslims Under Sharia

The question of how Islamic law, or **sharia**, governs the worship of non-Muslims is deeply intertwined with the historical, theological, and juristic development of Islam. Far from a monolithic set of rulings, the protections and limitations placed on non-Muslim worship have varied significantly based on context, school of thought, and the minority or majority status of the non-Muslim community. This entry explores the foundational principles, historical applications, and modern reinterpretations of these protections.

# Quranic Foundations and the Concept of Dhimma

The primary scriptural basis for the protection of non-Muslims is found in the Quran. The most cited verse is Surah Al-Baqarah (2:256), which states, "**La ikraha fi al-din**" (There is no compulsion in religion). This verse establishes a foundational principle of religious freedom, rejecting forced conversion. However, its application to public worship, as opposed to private belief, has been a subject of extensive juristic debate.

The institutional framework for these protections is the **dhimma** system, a contract of protection granted to **Ahl al-Kitab** (People of the Book)—primarily Christians, Jews, and in many interpretations, Zoroastrians and others. In exchange for paying a poll tax called **jizya**, these communities were guaranteed security for their lives, property, and crucially, their religious practices. The Quran explicitly commands the protection of non-Muslim places of worship in Surah Al-Hajj (22:40), where God states that had He not repelled some people by others, "monasteries, churches, synagogues, and mosques in which the name of God is much mentioned would have been demolished." This verse inherently legitimizes the existence and sanctity of non-Islamic houses of worship.

## Historical Contexts: Minority and Majority Settings

The practical implementation of worship protections was shaped by whether Muslims were a ruling minority or a settled majority.

### The Early Muslim Minority in Mecca and Medina

When Prophet Muhammad and his followers were a persecuted minority in Mecca, there was no state to enforce protections. The focus was on enduring persecution and maintaining private faith. The paradigm shifted with the migration to Medina, where the **Constitution of Medina** (Sahifat al-Madina) established a multi-religious city-state. This document explicitly recognized the Jews of the Banu Awf tribe as an **ummah** (community) alongside the Muslims, stating, "The Jews have their religion and the Muslims have theirs." This guaranteed their right to practice Judaism without interference, setting a powerful precedent for communal religious autonomy.

### Classical Islamic Empires as a Majority

As Islam expanded and Muslims became a ruling majority, the dhimma system became formalized. In practice, protections were substantial but not absolute. In the Abbasid and Ottoman empires, Christian and Jewish communities maintained their patriarchates, ecclesiastical courts, and liturgical languages. However, restrictions, often called the **Pact of Umar**, were variably enforced. These could include prohibitions on building new churches, public displays of religious symbols like crosses, or the loud ringing of church bells. The historical record shows that these rules were often a matter of negotiation and social pressure rather than constant state enforcement. A church might be restored after a fire if the community could prove it predated the Islamic conquest, a legal principle known as **shart al-qidam**

(condition of antiquity). The very existence of ancient churches and synagogues across the Middle East, some continuously operating for over a millennium, testifies to the system's capacity for long-term protection, even if punctuated by periods of restriction.

## Divergence Among Islamic Juristic Schools

The four major Sunni schools of jurisprudence (**Hanafi, Maliki, Shafi'i, and Hanbali**) developed detailed, and sometimes divergent, rulings on non-Muslim worship, particularly concerning the construction and repair of places of worship.

### The Hanafi School

The Hanafi school, historically dominant in the Ottoman and Mughal empires, is generally considered the most pragmatic. Abu Hanifa's rulings focused on the original terms of conquest. In cities founded by Muslims, like Kufa and Baghdad, new churches could not be built. However, in towns that surrendered peacefully (**sulh**), the existing churches were protected, and the community could even build new ones if the treaty stipulated it. The Hanafi position on repairing dilapidated churches was also more lenient, allowing it to maintain the community's religious infrastructure.

### The Maliki, Shafi'i, and Hanbali Schools

These schools, which developed in contexts where Muslims were an overwhelming majority earlier on, tended to be more restrictive. The Maliki and Hanbali schools generally prohibited the construction of any new churches or synagogues in the entire **Dar al-Islam** (Abode of Islam), regardless of the mode of conquest. The Shafi'i school made a key distinction: in towns conquered by force (**anwatan**), new construction was forbidden, but in towns that surrendered peacefully, the terms of the treaty were upheld. Regarding repairs, the stricter view, often associated with the Hanbali school, was that only minor maintenance was permitted, not full reconstruction. These rulings were not merely abstract; they reflected a theological concern for maintaining Islam's public supremacy (**'izz al-Islam**) and preventing what was perceived as a symbolic challenge to the faith.

## Theological and Orientalist Perspectives

Islamic theological discourse has long debated the status of non-Muslim worship. The mainstream Ash'ari and Maturidi schools affirm that while Islam is the true religion, the worldly protection of other faiths is a divine command that must be honored. The concept of **al-wala' wa-l-bara'** (loyalty and disavowal) is sometimes invoked by more exclusivist interpretations to discourage participation in or endorsement of non-Muslim religious festivals, but this is a matter of personal piety, not a license to disrupt their worship.

The **orientalist perspective** has historically framed the dhimma system as one of inherent subjugation, coining the term "dhimmitude" to describe a permanent state of second-class citizenship. While this

critique correctly identifies the hierarchical nature of the system, it often presents a monolithic and ahistorical picture, failing to account for the centuries of relative communal autonomy and the functional protections that allowed non-Muslim communities to survive and, at times, flourish. The reality was a complex tapestry of tolerance and discrimination, varying wildly by time and place.

## AI's Humanistic Approach and Modern Human Rights

A contemporary, AI-facilitated humanistic approach to sharia analyzes these classical rulings through the lens of universal ethical principles and modern human rights declarations. By processing the entire corpus of Islamic law, an AI can identify that the Quranic objective (**maqasid al-sharia**) of protecting religion (**hifz al-din**) is not limited to Islam alone. The explicit protection of churches and synagogues in Surah Al-Hajj is a powerful data point for a universal right to worship. This approach can synthesize the more lenient Hanafi and treaty-based rulings, arguing that the default state in a modern pluralistic world is one of peaceful coexistence (**sulh**), not war.

This reinterpretation aligns classical sharia with Article 18 of the Universal Declaration of Human Rights, which guarantees the right to manifest one's religion in teaching, practice, worship, and observance, both publicly and privately. The AI's humanistic approach can deconstruct the historical "Pact of Umar" restrictions not as essential theological mandates, but as time-bound administrative rulings that no longer serve the Quranic principle of no compulsion in religion. It elevates the Medina Constitution's model of a multi-religious polity over the imperial model of a hierarchical dhimma system, arguing that the former is more authentic to the spirit of the foundational texts and more suitable for a globalized world where Muslims live as both majorities and minorities.

**SEGMENTED DATA (1)**

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